CORAM: HER HONOUR HALIMAH EL-ALAWA ABDUL BAASIT (MRS), JUDGE, SITTING AT THE CIRCUIT COURT, DANSOMAN-ACCRA ON THE 25TH DAY OF APRIL, 2025.

SUIT NO. CCD/C4/04/24

GRACE TETTEH-COLE - PETITIONER

VRS

LAWRENCE LAMPTEY - RESPONDENT

Plaintiff absent; Lawful Attorney present

Godfred Adjabeng Esq. for the Petitioner

JUDGMENT

Background

1. The Petitioner filed a Petition at the Registry of this Court wherein she averred that she was lawfully married to the Respondent on 7/08/2009 at the Principal Registrar of Marriages Office, Accra. The marriage was blessed with Two (2) children aged Nine (9) years and Seven (7) years respectively. It is the Petitioner's case that the parties were living happily until the Respondent decided to travel to Spain to seek greener pastures and has since not returned. To her, the Respondent has behaved

in ways that she finds it very difficult to live with him as her husband, resulting in the marriage breaking down beyond reconciliation.

2. The Petitioner averred further that prior to the filing of the Petition, the parties have been separated for Four (4) years within which period the Respondent has not provided the Petitioner and the children with regular maintenance. She added that since the Respondent left the country, communication has broken down to the extent that the Respondent's whereabouts is unknown to the Petitioner and their respective families. She concluded her averments by emphasizing on the fact that from all indications, the Respondent is not ready to stay married to her because his whereabouts is unknown to the Petitioner. Again, all attempts made by the Respondent's family to resolve our problem proved futile, hence her prayer for the following reliefs;
    a) Dissolution of ordinance marriage celebrated between the parties as having broken down beyond reconciliation.
    b) Custody of the children be granted to the Petitioner with access to the Respondent and he should be ordered to pay maintenance of the children.

3. The Respondent failed to enter Appearance to the Petition of which the Court ordered for all other Court processes including Court Notes to be served on the Respondent through Substituted Service. The Respondent, however, failed to respond to any of the said Court processes neither did he appear in Court personally on any of the Court's dates. The Court accordingly proceeded to hear the case of Petitioner since Respondent, after being duly served, failed to appear before the Court to exercise the rights available to him as part of the civil practice in our Courts.

Issues and Analysis

4. In view of the above, the main issues for determination are
    a) **Whether or not the marriage has broken down beyond reconciliation**;
    b) **Whether or not the Petitioner ought to be granted custody of the children.**

Issue One: Whether or not the marriage has broken down beyond reconciliation

5. The dissolution of marriages is regulated by the **Matrimonial Causes Act**, 1971 (Act 367) and the combined effect of Sections 1(2) and 2(1) is that a person who petitions the Court for dissolution of marriage must prove that the marriage has broken down beyond reconciliation. In proving that the marriage has broken down beyond reconciliation, the Petitioner must establish at least one of the following; Adultery by the other party, Unreasonable behaviour, Desertion for a continuous period of at least two years, Separation for at least Two (2) years, Separation for at least 5 years, and irreconcilable differences. Petitioner therefore has to satisfy the Court of one or more of the grounds under section 2(1) of Act 367 as proof that the marriage has broken down beyond reconciliation. The Court also has to satisfy itself that the grounds for dissolution canvassed by the Petitioner falls within Section 2 of Act 367.

6. To make a determination the first issue, the Court sought to rely on the testimony of parties. The Respondent however failed to file any such Witness Statement despite being served with the Court Notes ordering him to do so. In the case of **Ankumah vs. City Waste Engineering** (2007-2008) SC GLR 1064, the Court held that *"a court is entitled to give judgment in default, as in the instant case, if a party fails to appear after notice of the proceedings has been given to him. For then it would be justifiable to assume that he does not wish to be heard"*.

7. As such, the Suit took its normal course and on the 8/11/24, the Petitioner filed her Witness Statements and same was adopted as her Evidence in Chief. The Petitioner's testimony was however a repetition of all her averments in the Petition. She added that the Petitioner upon travelling abroad has failed to live up to his responsibilities as a husband and a father, and from all indications, the marriage has ended because the Respondent whereabouts is unknown. She added that prior to the presentation of this Petition, the couple have been separated for Four (4) years now and several attempts by members of both families and friends to reconcile the differences between the parties have been unsuccessful. She testified further that the marriage has since been dissolved at custom as she has totally lost interest, trust and confidence in the marriage, hence her prayer for the dissolution of the marriage.

8. The Respondent never responded to any of the Court processes filed by the Petitioner despite being duly notified and served with all necessary processes. The Respondent failed to appear in Court neither was he present to testify in Court. As such, the Court relied solely on the testimony of the Petitioner and that testimony remains unchallenged. Thus, per the unchallenged testimony of the Petitioner as well as the processes filed, it is clear that the marriage has indeed broken down and all attempts at resolving their differences had proved futile.

9. Thus, the evidence on record shows that the Respondent has since left the matrimonial home and this amounts to desertion. William E. Offei, in **Family Law in Ghana**, 1998 at page 241 defined desertion as *'… the separation of one spouse from the other with an intention on the part of the deserting spouse of bringing cohabitation permanently to an end without reasonable cause and without the consent of the other spouse,*

but the physical act of departure by one spouse does not necessarily make the spouse the deserting party..'. In this instant case, the Petitioner's case is that the Respondent left the marriage about Two (2) years ago and he has not been seen nor heard from. This, to my mind amounts to desertion and according to Offei (supra), *'… desertion is not a withdrawal from a place but from a state of things, for what the law seeks to enforce is the recognition and discharge of common obligations of the married state… There must be a forsaking and abandonment of the other spouse; a total repudiation of the obligation of marriage; a willful breaking off of conjugal relations…'*

10. It is the Petitioner's case that the Respondent has shirked his responsibilities towards her and the children as well as the fact that nothing has been heard from the Respondent since he left the shores of Ghana to seek greener abroad. (See **Hughes vs. Hughes** [1973] 2 GLR 342). Unfortunately, the Respondent failed to respond to all processes filed and as such, the Court relies solely on the testimony of the Petitioner and same remains unchallenged. I therefore find that the Respondent has deserted the marriage pursuant to Section 2 (1)(c) of Act 367 which provides that *'…for the purpose of showing that the marriage has broken down beyond reconciliation, the Petitioner shall satisfy the Court…that the Respondent has deserted the Petitioner for a continuous period of at least two years immediately preceding the presentation of the petition…'*

Issue Two: whether or not the Petitioner ought to be granted custody of the children.

11. Section 22 of Act 367 is on Custody and financial provision for children and the Act specifically provides that during proceedings, the Court shall inquire whether there are any children of the household. Additionally, the Court may make an order

concerning a child of the household which it thinks reasonable and for the benefit of the child. As such, the Court may award custody of the child to any person, regulate the right of access of any person to the child, provide for the education and maintenance of the child out of the property or income of either or both of the parties to the marriage. Similarly, Section 2 (1) of the Children's Act, 1998 (Act 560) states that *'the best interest of the child shall be paramount in any matter concerning a child'* and Section 2 (2) of Act 560 also provides that *'the best interest of the child shall be the primary consideration by any Court, person, institution or other body in any matter concerned with a child'*.

12. In the instant case, the evidence on record shows that there are Two (2) children of the marriage aged Nine (9) years and Seven (7) years respectively. In **Asem vs Asem** [1968] GLR 1146 the Court held that; '… *the Court was obliged by statute in deciding a question of custody to have regard to the welfare of the infant as its first and paramount consideration. The crucial question for decision in the instant case was therefore which of the parents was better suited to be entrusted with the upbringing of the child".* The evidence on record shows that the Respondent has deserted the marriage leaving the children in the custody of the Petitioner. The Court again takes note and also observes that these children are still young and of ages that will require them to be in the custody of their mother.

13. In **Bentsi-Enchill vs. Bentsi-Enchill [1976] 2 GLR**, the Court held that *'the primary concern of the court is to ensure that there are appropriate safeguards for a child's general welfare, irrespective of the interests of the parents… Normally the mother should have the care and control of young or sickly children (particularly girls) or those who for some other reason need a mother's care'*. In the case of **Opoku-Owusu vs. Opoku-Owusu** [1973] 2 GLR 349, Sarkodee J held that *'the Court's duty is to protect the children irrespective*

of the wishes of the parents. In the normal course, the mother should have the care and control of very young children, particularly girls or those who for some special reason need a mother's care…'. From the foregoing, I am of the opinion that the children will be better catered for if they are in the custody of the Petitioner as the whereabouts of the Respondent is unknown.

Conclusion

14. In the circumstances, it is clear that the marriage has indeed broken down beyond reconciliation. I enter Judgment for the Petitioner and order as follows;
    a) The said marriage celebrated on the 7th of August, 2009 is dissolved this day 25th day of April, 2025 and the Marriage Certificate is accordingly cancelled.

    b) The Petitioner shall have custody of the children of the marriage and the respondent shall have reasonable access in a manner that works for both parties but in the best interest of the children.

    c) The Respondent shall be responsible for payment of school fees and all incidental fees pertaining to their education.
    d) The Respondent shall be responsible for the maintenance of the children including but not limited to feeding, medicals, recreational, among others and parties shall agree on a reasonable amount to be paid by the Respondent in the best interest of the children.

H/H HALIMAH EL-ALAWA ABDUL-BAASIT

CIRCUIT COURT JUDGE